

		Clerk shall give notice.
5.	<u>30-2024-01424411-CU-PA-CJC</u> Avila vs. Peterson	Before the Court is a Motion to Compel Physical/Mental Examination. ROA 90. On May 1, 2026, Defendant James Edward Peterson ("Defendant James") and Defendant Christine Peterson ("Defendant Christine") (collectively "Defendants") filed the instant Motion to Compel Physical/Mental Examination against Plaintiff Perry Avila ("Plaintiff"). ROA 90. Defendants request that the Court issue an order compelling Plaintiff to attend and complete the mental examination with Dr. Dean Delis. ROA 90. Plaintiff requests that the Court deny the Motion in its entirety. ROA 102. I. Motion to Compel Physical/Mental Examination California Code of Civil Procedure Section 2032.020 permits a party to obtain discovery by means of a physical or mental examination of another party or their agent "in any action in which the mental or physical condition of that party . . . is in controversy in the action." Cal. Civ. Proc. Code § 2032.020(a). "If a defendant who has demanded a physical examination under this article, on receipt of the plaintiff's response to that demand, deems that any modification of the demand, or any refusal to submit to the physical examination is unwarranted, that defendant may move for an order compelling compliance with the demand." Cal. Civ. Proc. Code § 2032.250(a).

	This motion shall be accompanied by a meet and confer declaration under Section 2016.040. <i>Id.</i> Effective January 1, 2026, a meet and confer declaration “shall state facts showing a reasonable and good faith attempt” on the part of the moving party to meet and confer either in person, telephonically, or by videoconference; email alone will not suffice. Cal. Civ. Proc. Code § 2016.040(a). Additionally, the moving party’s declaration “shall include whether [they have] met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion.” Cal. Civ. Proc. Code § 2016.040(b). The Court finds that Defendants engaged in sufficient meet and confer efforts with Plaintiff; however, the supporting declaration is deficient because it does not state whether the parties met and conferred, including through electronic communication, regarding the retention of a certified shorthand reporter, as required by Code of Civil Procedure Section 2016.040(b). Accordingly, the meet and confer declaration does not comply with the statutory requirements, and denial is warranted on this procedural ground. II. Mandatory Sanctions The Court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel response and compliance with a demand for a physical examination, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Cal. Civ. Proc. Code § 2032.240(c). Here, the Court finds no substantial justification for Defendants’ failure to satisfy the provisions of California Code of Civil Procedure Section 2016.040(b). However, while the Civil Discovery Act authorizes sanctions for a party’s failure to make a good faith effort to meet and confer in person, by telephone, or by videoconference
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		before seeking court intervention, the Court finds no corresponding provision in Chapter 7 of the Act that renders sanctionable a party's failure to confer regarding the retention of a certified shorthand reporter. <i>See</i> Cal. Civ. Proc. Code § 2023.010(i). Thus, the Court finds that sanctions against Defendants are not proper. Accordingly, Defendants' Motion to Compel Physical/Mental Examination is DENIED. Plaintiff to give notice.
6.	30-2025-01494927-CU-PO-NJC Orellana vs. ROSS Stores, Inc.	Before the Court is a Motion to Compel Further Responses to Requests for Production (ROA 43) and a Motion for Relief from Waiver of Objections (ROA 54). On March 23, 2026, Plaintiff Edna Lourdes Orellana ("Plaintiff") filed a Motion to Compel Production of Documents against Defendant Ross Dress for Less, Inc. ("Defendant"). ROA 43. On May 22, 2026, Defendant filed a Motion for Relief from Waiver of Objection. ROA 54. Plaintiff requests that the Court grant its Motion to Compel Further Responses to Production and impose sanctions in the amount of \$1,400 against Defendant and its counsel of record. ROA 43. Defendant requests that the Court deny Plaintiff's Motion and request for sanctions in its entirety. ROA 61. Additionally, Defendant requests that the Court grant its Motion for Relief from Waiver. ROA 54. I. Motion to Compel Production In the interest of reaching a conclusion of the discovery dispute on the merits, the Court exercises its discretion to construe the instant Motion to Compel <i>Further</i> as a Motion to Compel <i>Initial</i>. <i>See infra</i>. Under California Code of Civil Procedure Section 2031.300, if a party to whom a demand for inspection, copying,